

## 23STCV10791 23STCV10791

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-06-23

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Case Number: 23STCV10791 Hearing Date: June 23, 2026 Dept: 300

CASE NUMBER: 23STCV10791

CASE NAME: Perla Y Reyes vs. Crystal Holbia Toscano

TYPE OF MOTION: Motion for Summary Judgment

FILING PARTY: Defendant Crystal Holbia

Toscano

RESPONDING

PARTY: Unopposed

HEARING DATE: June 23, 2026

Case Background

On May 15, 2023, Plaintiff Perla Reyes Toscano

("Plaintiff"), in pro per, filed a complaint against

Defendant Crystal Holbia Toscano ("Defendant") arising from the

alleged falsification of a car title. The complaint is handwritten on

pleading paper and does not identify any causes of action.

On July 10, 2024, Defendant, in pro per, filed

an answer.

On April 2, 2026, Defendant filed the instant motion

for summary judgment. The motion is unopposed.

On May 19, 2026, Defendant filed a motion for

continuance of the hearing date on the motion for summary judgment.

Trial is not yet set.

Instant Pleading

Defendant moves the Court for an order granting summary

judgment.

Decision

Defendant's motion for summary judgment is taken

OFF-CALENDAR.

Discussion

Defendant's motion is procedurally defective because it

was served with less than 86 days' notice in violation of Code of Civil

Procedure sections 437c(a)(2) and 1013(a). Code of Civil Procedure § 437c

provides in relevant part: "Notice of the [summary judgment] motion and

supporting papers shall be served on all other parties to the

action at least...81 days before the time appointed for hearing." (Code Civ.

Proc., § 437c(a), emphasis added.) Under Code of Civil Procedure section 1013(a), in the case of service by mail, “[s]ervice is complete at the time of deposit, but any period of notice and any right or duty to do any act or make any response within any period or on a date certain after service of the document, which time period or date is prescribed by statute or court rule, shall be extended five calendar days, upon service by mail, if the place of address and the place of mailing is within the State of California....” Code of Civil Procedure § 437c(f)(2) provides that “a motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary adjudication.”

Here, the proof of service attached to the motion indicates that the motion was e-served on Plaintiff on April 2, 2026. (Motion, p. 7.) The proof of service indicates that the motion was served upon Plaintiff by United States Postal Service[1].

(Ibid.) With a noticed hearing date of June 23, 2026, the instant motion, pursuant to Code of Civil Procedure sections 437c(a)(2) and 1013, should have been served upon Plaintiff on March 29, 2026. “[T]rial courts do not have authority to shorten the minimum statutory notice period for summary judgment hearings.” (McMahon v. Superior Court (2003) 106 Cal.App.4th 112, 118.) Additionally, courts cannot cure insufficient notice by simply

continuing the hearing date to reach the required statutory threshold. (See Robinson

v. Woods (2008) 168 Cal.App.4th 1258, 1267-1268.)

The pro se status of Plaintiff does not excuse compliance

with these fundamental requirements, as all litigants are held to the same

standards. (Rappleyea v. Campbell (1994) 8 Cal.4th

975, at pp. 984-985.)

Accordingly, as Defendant has failed to comply with the

applicable statutory notice procedures, the motion for summary judgment is TAKEN

OFF CALENDAR.

Conclusion

Based on the foregoing, the motion is TAKEN OFF

CALENDAR.

[1]

While the proof of service states that it was “transmitted as a PDF document by

electronic mail...using the e-mail address indicated” no e-mail address is

indicated on the proof of service. Rather, two physical addresses are provided,

and the proof of service checks that it was served by United States Postal

Service. However, even if service was performed by e-mail, the motion is still

procedurally defective. (See Code of Civil Procedure §§ 437c(a)(2) and

1010.6(a)(3)(B).)